

Parvathi vs K.Sivalingam on 25 July, 2008

Equivalent citations: AIR 2009 (NOC) 222 (MAD.)

Author: G.Rajasuria

Bench: G.Rajasuria

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 25 .07.2008

C O R A M

THE HONOURABLE MR.JUSTICE G.RAJASURIA

A.S.No.386 of 1994

Parvathi

.. Appellant

Vs.

1. K.Sivalingam

2. Mariyayee

.. Respondents

Appeal filed as against the judgment and decree dated 24.01.1994 passed by the l

For Appellant : Mrs.Pushpa Sathyanarayanan

For respondents : No appearance

This appeal is focussed as against the judgment and decree dated 24.01.1994 pass

2. The unsuccessful second defendant filed this appeal.

3. An epitome of the case of the plaintiff as stood exposted from the amen

The deceased Kandasamy Naicker and the deceased first defendant gave birth to a

4. Controverting and gainsaying the allegations/averments in the plaint, the sec

The plaintiff is not the son of the deceased Kandasamy Naicker and there

5. The trial Court framed the relevant issues. During trial, on the side of the

6. Being aggrieved by and dissatisfied with the judgment and decree of the trial

The judgment and decree of the trial Court is against law, weight of evidence and

7. The points for consideration are as to:-

(a) Whether there had been any legal marriage between Kandasamy Naicker and Kuzh

(b) Whether there is any infirmity in the judgment and decree of the trial Court

POINT NO.1:

The learned counsel for the appellant/second defendant would argue that absolute

8. Ex.A8 is the Birth Certificate of the plaintiff, which would evidence that he

9. The learned counsel for the appellant, citing the decision of the Hon'ble Ape

10. A bare perusal of it would highlight and spotlight the fact that the facts i

11. In the cited decision of the Hon'ble Apex Court, a birth certificate issued

Sections 76, 77 and 79 of the Indian Evidence Act are reproduced hereunder for ready

"76. Certified copies of public documents:- Every public officer having the cust

77. Proof of documents by production of certified copies :- Such certified copi

79. Presumption as to genuineness of certified copies:- The Court shall presume

Provided that such document is substantially in the form and purports to be exec

The Court shall also presume that any officer by whom any such document purports

As such, those provisions speak by themselves that Ex.A8 could be relied on as a piece o

13. In fact, the cross examination was on the line as though the father's name r

14. Then the core question arises as to whether Kuzhandai Ammal could be held to

The Hindu Marriage Act, 1955 preaches monogamy. Even earlier to it, The Madras Hindu

"Bigamy to be void and punishable"

Section 3 of the said Act would unambiguously show that the said Act applies to Hin

An Act to prohibit bigamous marriage among, and to provide for a right of divorce for,

Whereas it is expedient to prohibit bigamous marriages, among, and to provide fo

17. It is therefore crystal clear that anterior to the said enactment of the year

18. Impugning and refuting the evidence of P.W.2, the learned counsel for the a

19. The learned counsel for the appellant/second defendant would argue that it i

20. At this juncture, my mind is redolent with the following decision:

2001 (3) CTC 513 (KANAGAVALLI v. SAROJA). An excerpt from it would run thus:

Section 16 of the Hindu Marriage Act clearly lays down that notwithstanding that a m

8. In RAMESHWARI DEVI v. STATE OF BIHAR & OTHERS, 2002 (2) S.C.C.431 the Supreme

21. As such, a perusal of the aforesaid decisions would clearly indicate that f

22. Here, my discussion would indicate that there was legitimate marriage between

23. The learned counsel for the appellant would contend that in the one other su

24. In my considered opinion, simply because in the previous connected suit he l

25 . The maxim Falsus in uno, falsus in Omnibus (False in one thing, false in e

POINT NO.2:

26. In view of the discussion supra, I could see no infirmity in the judgment an

25.07.2008

gms

Index : Yes

Internet : Yes

To

Principal Subordinate Judge, Salem

G.RAJASURIA, J.

Gms Pre delivery judgment in 25.07.2008